



U.S. Department
of Transportation

**Research and
Special Programs
Administration**

400 Seventh St., S.W.
Washington, D.C. 20590

**DOT-E 8525
(EXTENSION)**

In accordance with 49 CFR 107.105 of the Department of Transportation (DOT) Hazardous Materials Regulations DOT-E 8525 is hereby extended by changing the expiration date in paragraph 10 from November 30, 1985 to November 15, 1987.

This extension applies only to party(s) listed below based on the application received in accordance with 49 CFR 107.105. All other terms of the exemption remain unchanged. This extension forms part of the exemption and must be attached to it.



Alan I. Roberts

Director
Office of Hazardous Materials Transportation

DEC 9 1985

(DATE)

Dist: FHWA, FRA USCG

EXEMPTION HOLDER

ABC Containerlines, N.V.
Antwerp, Belgium
(U.S. AGENT: Warren & Associates, P.C.
Washington, DC)

APPLICATION DATE

October 28, 1985



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400 Seventh Street, S.W.
Washington, D.C. 20590

DOT-E 8525
(FIRST REVISION)

1. Associated Container Transportation (U.S.A.), New York, New York is hereby granted an exemption from certain provisions of this Department's Hazardous Materials Regulations specified in paragraph 5 below to permit the offering for transportation in commerce the mineral monazite sand, contained in certain industrial type packages stowed inside sift-proof freight container. Subject to the requirements stated herein and those of the International Atomic Energy Agency (IAEA) and the inter-Governmental Maritime Consultative Organization (IMCO), this exemption allows the transport of this low specific activity radioactive material in the arrangement described herein under the provisions of 49 CFR 173.392(c) without the exercise of all exclusive use controls described in 49 CFR 173.389(o)(1). It relaxes the limitations on the sum of the Transport Index for freight containers grouped together in a hold, compartment, or deck area of a sea-going vessel as stated in 49 CFR 176.700(h)(1) and (2). This exemption provides no relief from any regulation other than specifically stated, and provides no relief from the regulations of the IAEA or recommendations of IMCO. Each of the following is hereby granted the status of a party to this exemption:

ABC Containerline, N.V., Antwerpen, Belgium (U.S. Agent - Hansen
& Tidemann, Inc., New Orleans, LA) - PTE-1.

2. BASIS. This exemption is based on Associated Container Transportation's application dated November 17, 1981, submitted in accordance with 49 CFR 107.103 and the public proceeding thereon. The granting of party status is based on the following application submitted in accordance with 49 CFR 107.111, 107.105 and 107.103 and the public proceeding thereon:

ABC Containerline, N.V.'s application dated October 29, 1981, and
January 7, 1982.

3. HAZARDOUS MATERIALS (Descriptor and class). Monazite sand containing natural thorium, described as a radioactive material, low specific activity, n.o.s., and classed as a radioactive material.

4. PROPER SHIPPING NAME (49 CFR 172.101). Radioactive material, low specific activity, n.o.s.

5. REGULATION AFFECTED. 49 CFR 173.389(o)(1), 173.392(c), 176.700(h)(1) and (2).

6. MODES OF TRANSPORTATION AUTHORIZED. Cargo vessel, motor vehicle, rail freight.

7. SAFETY CONTROL MEASURES. Packages shall consist of either: (1) two-ton polyethylene-lined polypropylene "bulka bags," or (2) paper-poly-paper bags, about 50 kilograms (110 pounds) each, palletized and shrink-wrapped with polyethylene; loaded in 20-foot freight containers lined with polyethylene sheets extending three to four feet up the sides of the container and of sufficient length to flap back over the load at the door end. No more than nine "bulka bags" may be loaded per freight container.

This exemption provides no relief from necessary dunnage and blocking and bracing requirements. No more than 40 freight containers shall be transported per vessel. Packages and freight containers shall be labelled and placarded as required by regulations of the IAEA and the IMCO Dangerous Goods Code. When loading freight containers, precautions shall be taken to avoid package shifting and chaffing within the container, and to avoid other situations that might result in materials being released. Freight containers shall be stowed to provide maximum reasonable separation distances from spaces regularly occupied by ship's personnel (no less than the minimum distances specified in 49 CFR 176.700(h)(3)). Unnecessary personnel activity in the vicinity of the freight containers should be avoided.

8. SPECIAL PROVISIONS.

- a. A copy of this exemption must be carried aboard each vessel used to transport packages covered by this exemption.
- b. Persons who receive freight containers covered by this exemption may reshipe them pursuant to 49 CFR 173.22a.
- c. The provisions of 49 CFR 176.700(h)(1) requiring 20 foot separations between groups of packages, and the limitations of 49 CFR 176.700(h)(1) allowing no more than a cumulative transport index of 200 on a vessel are waived.
- d. Empty freight containers must be thoroughly cleaned following use and be free of any significant contamination (defined in 49 CFR 173.397) before being used in commerce again.

9. REPORTING REQUIREMENTS. Any incident involving loss of contents of the package must be reported to the Office of Hazardous Materials Regulation as soon as practicable.

10. EXPIRATION DATE. December 1, 1983.

Issued at Washington, D.C.:



Alan I. Roberts
Associate Director for
Hazardous Materials Regulation
Materials Transportation Bureau

MAY 5 1982

(DATE)

Address all inquiries to: Associate Director for Hazardous Materials Regulation, Materials Transportation Bureau, Research and Special Programs Administration, U.S. Department of Transportation, Washington, D.C. 20590. Attention: Exemptions Branch.

Dist: USCG, FRA, FHWA